

		unlikely lesser sanctions would be effective. Therefore, it would be prejudicial to Defendant to allow Plaintiff to present expert witness testimony at trial.
6.	EMERSON VS. ROBSON 2025-01503050	DEMURRER TO CROSS-COMPLAINT Plaintiff/Cross-Defendant August Emerson’s Demurrer to Defendants/Cross-Complainants Gary Robson and Ingbritt Robson’s Cross-Complaint is OVERRULED. “A demurrer to a complaint or cross-complaint may be taken to the whole complaint or cross-complaint or to any of the causes of action stated therein.” (Code Civ. Proc., § 430.50(a).) If Emerson wished to demur to specific causes of action in the Cross-Complaint he must comply with California Rules of Court 3.1320(a) which requires each ground be stated in a separate paragraph. A demurrer to a complaint as a whole “must not be sustained if the pleading states facts from which any liability results, although not for some or all of the relief sought to be obtained.” (<i>California Trust Co. v. Cohn</i> (1932) 214 Cal. 619, 628; see also <i>Warren v. Atchison, T. & S. F. Ry. Co.</i> (1971) 19 Cal.App.3d 24, 29.) Emerson’s only stated ground for demurrer is: “Defendant generally demurs to the cross-complaint complaint filed on the grounds the pleading does not state facts sufficient to constitute a cause of action pursuant to Code of Civil Procedure § 430.10(e).” Emerson provides no separate paragraphs attacking only certain causes of action. Thus, the demurrer is to the Cross-Complaint as a whole and must be overruled if any causes of action survive the demurrer. Here, Emerson failed to challenge and expressly stated the 1st and 2nd causes of action were not the subject of the demurrer. (Mot., p. 6.) Thus, the 1st and 2nd causes of action survive the demurrer. Therefore, Emerson’s demurrer to the entire Cross-Complaint must be overruled.
7.	SCHEFFLER VS. CALIFORNIA DELUXE WINDOWS INDUSTRIES, INC. 2025-01510512	DEMURRER TO ANSWER Plaintiffs Dale Scheffler and Cindy Scheffler’s Demurrer to Defendant California Deluxe Windows Industries, Inc.’s Answer is SUSTAINED in part with 20 days leave to amend and OVERRULED in part. The demurrer is sustained as to each cause of action on the ground the affirmative defenses fail to “refer to the causes of action which they are intended to answer” as required by Code of Civil Procedure, section 431.30(g). Defendant’s 4th affirmative defense seeks to bar all recovery because Plaintiffs’ negligence was active or primary while Defendant’s negligence could only be passive or secondary.

		California has adopted a pure comparative negligence system. (<i>Li v. Yellow Cab Co.</i> (1975) 13 Cal.3d 804, 874-875.) Similarly, Defendant's 10th affirmative defense seeks to impose stricter comparative fault rules. The affirmative defense seeks to bar any recovery if Plaintiffs were "negligent or otherwise at fault, wholly or in part" Thus, Plaintiffs' demurrer to the 4th and 10th affirmative defenses is sustained on this ground. Defendant's 5th affirmative defense seeks defense costs under Code Civ. Proc., § 1038. Section 1038 is limited to civil actions for indemnity and contribution. Plaintiffs have not made a claim for indemnity or contribution. Thus, Plaintiffs' demurrer to the 5th affirmative defense is sustained on this ground. Defendant's 14th affirmative defense asserts the defense of laches. However, laches is a defense for causes of action in equity and not at law. Defendant has failed identify any cause of action in the Complaint which is a claim in equity. Thus, Plaintiffs' demurrer to the 14th affirmative defense is sustained on this ground. Defendant's 15th affirmative defense claims Defendant did not receive notice of the duty to defend Plaintiffs. However, Plaintiffs have not alleged Defendant failed to defend them. Thus, Plaintiffs' demurrer to the 15th affirmative defense is sustained on this ground.
8.	GUZMAN VS. BEC ELECTRIC, INC. 2025-01525454	DEMURRER TO COMPLAINT Defendant BEC Electric, Inc. dba Service Lion's demurrer to the First through Thirteenth Causes of Action alleged in Plaintiff Ricardo Guzman's Complaint is OVERRULED. <u>First Cause of Action for Nonpayment of Wages:</u> To establish a cause of action for nonpayment of wages, the plaintiff must prove: (1) plaintiff performed work for defendant; (2) defendant owes plaintiff wages under the terms of the employment; and (3) the amount of unpaid wages. (CACI 2700.) The Complaint alleges that Plaintiff worked for Defendant as a non-exempt employee from January 2025 through September 2025. (Complaint, ¶ 12.) The Complaint further alleges Defendant regularly failed to pay Plaintiff all wages under the terms of the employment, including commissions. (Complaint, ¶ 43.) Defendants violated, or caused to be violated, the applicable IWC Wage Order(s) and California Labor Code sections 201, 202, 204, 218, 1194, 1197, and 1198 as a result of the nonpayment of wages. (Complaint, ¶ 44.) Although the Complaint does not allege the amount of unpaid wages, this information can be obtained through discovery. The allegations are sufficient at the pleading stage to withstand demurrer. Therefore, the demurrer to the first cause of action is OVERRULED.